

## Gaya Prasad v. U.P. Power Corporation Ltd. & 3 Others

Allahabad High Court · Division Bench · 20 December 2013 · 2013 SCC OnLine All 12913 · Writ - C No. 70396 of 2013 · **Writ petition disposed of; consumer relegated to the authority; recovery stayed on deposit**

### HEADNOTE

Whether a consumer, having taken a permanent disconnection on paying the disconnection fee, nevertheless continued to use electricity — where a spot inspection found the meter missing but the consumer residing and using supply — is a disputed question of fact that the writ court will not decide. Clause 7.10 of the U.P. Electricity Supply Code, 2005 provides the Consumer Grievance Redressal Forum and Ombudsman route as the first-instance remedy for such billing grievances. The Court declined to interfere but gave the consumer liberty to approach the Executive Engineer with a representation and a Rs. 25,000 draft, on which the recovery (of about Rs. 1,40,848 raised as arrears of land revenue) would be stayed until a reasoned decision.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::7.10

Disputed fact of post-disconnection usage belongs to the Clause 7.10 forum, not writ

#### QUESTION

Can the writ court decide whether a consumer continued to use electricity after a permanent disconnection, or is that for the Clause 7.10 forum?

#### HOLDING

It is a disputed question of fact (a spot inspection found the meter missing but the consumer residing and using supply) that the writ court will not decide. Clause 7.10 provides the first-instance CGRF/Ombudsman route for such billing grievances. The Court declined interference but gave liberty to approach the Executive Engineer with a Rs. 25,000 draft, on which the recovery would be stayed pending a reasoned decision, to be recovered only if usage is found. ¶ (order)

#### LIMITING FACTS

Consumer claimed permanent disconnection on paying the fee and no subsequent use; spot inspection found no meter but the consumer residing and using electricity; Rs. 1,40,848 sought as arrears of land revenue.

### PRINCIPLE TAGS

**clause-7.10-forum-ombudsman-route-for-billing-grievances** A disputed billing grievance (here whether the consumer used electricity after disconnection) is for the Clause 7.10 CGRF/Ombudsman route in the first instance, not the writ court, which will not decide disputed facts. ¶ (order)

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE CONSUMER ACTUALLY USED ELECTRICITY AFTER DISCONNECTION

Disputed question of fact left to the Executive Engineer / Clause 7.10 forum; recovery only if usage is found. ¶ (order)